Topic 12 — Constitutional Bodies

Covers syllabus (click to expand)

Core bodies: Election Commission (निर्वाचन आयोग) (324–329) | UPSC (संघ लोक सेवा आयोग) | State PSC / JPSC | Finance Commission (वित्त आयोग) | CAG (भारत के नियंत्रक-महालेखापरीक्षक) (148–151) | Attorney General (महान्यायवादी) (76) | Advocate General (महाधिवक्ता) (165) | GST (वस्तु एवं सेवा कर) Council (जीएसटी परिषद) (279A) | Special Officer for Linguistic Minorities (350B (अनु. 350B)) **Commissions:** NCSC (राष्ट्रीय अनुसूचित जाति आयोग) 338 | NCST (राष्ट्रीय अनुसूचित जनजाति आयोग) 338A | Art. 339 (ad hoc ST areas) | NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग) 338B + Art. 340 | 341/342/342A lists | 102nd/105th | Official Language Commission 344 | Part XVII (343–351) | Article-wise list | Constitutional vs Statutory vs Executive | UPPSC (उत्तर प्रदेश लोक सेवा आयोग) / UP SEC (राज्य निर्वाचन आयोग) / AdvG UP

Sources baked in: Laxmikanth (Constitutional Bodies), Arts. 76, 148–151, 165, 280, 279A, 315–323, 324–329, 338–338B, 340, 343–351, 350B, CEC Act 2023, UPPCS Prelims PYQs 2018–2025 **Weight:** ★★★ — ECI not Speaker/ULB; UPSC four sources; 350B **7th not 9th**; AG pleasure; SPSC extend = Legislature; NCSC **338** / NCST **338A** / NCBC **338B** (2024 also **340**); English **15 years** (2023); NITI executive **Last verified:** September 2026 · Ghatnachakra drills added for Finance Commission, UPSC/SPSC, linguistic minorities, and Part XVI **Current Affairs:** CEC Act **2023**; 102nd/105th NCBC; *Mohit Minerals* 2022

Current Affairs

Year	Fact	Why asked
2023	CEC & Other ECs Act — panel **PM + LoP + Cabinet Minister (कैबिनेट मंत्री)**	Replaced the SC's interim **CJI-on-panel**
2023	*Anoop Baranwal*	Independence of ECI appointments
2022	*Mohit Minerals*	GST Council recommendatory
2023–	16th FC constituted **31 December 2023**, chaired by **Arvind Panagariya**	Body, not NITI (नीति)
1993	ECI became durable multi-member	3 commissioners
2004	89th — NCSC / NCST split	338 vs 338A
2018 / 2021	102nd NCBC constitutional; **105th** State OBC (अन्य पिछड़ा वर्ग) lists	338B vs 340
1992–93	*Indra (इन्द्र) Sawhney* → NCBC Act	Why a standing OBC body
1963 / 67	Official Languages Act	English continues after 15-year clause

Frame — what “constitutional body” means

Created **by the Constitution**, not by an ordinary Act. Contrast: **statutory** (Lokpal (लोकपाल), NHRC, CVC) · **executive** (NITI, NDC) — full table below.

Independence toolkit (not every body gets all of them): charged salary · removal like SC judge · conditions not varied to disadvantage · bar on further office · own staff.

Article-match raata: 76 AG · 148 CAG · 165 AdvG · 280 FC · 279A GST Council · 315 UPSC/SPSC · 324 ECI · 338 NCSC · 338A NCST · 338B NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग) · 340 ad-hoc BC commission · 344 OL Commission · 350B Linguistic Officer.

Election Commission (Arts. 324–329)

Constitutional body (Arts. 324–329) for elections to **Parliament**, **State legislatures**, **President** and **Vice-President** — not Speaker, not PRI/ULB.

- **Warrant of Precedence (वरीयता):Chief Election Commissioner** = **rank 9A** (with CAG and UPSC Chair; after SC judges — rank 9). Full table → **Topic 6**.
- **Article 324(1)** gives the Election Commission superintendence, direction, and control over these four elections.
- **Article 324(2)** provides for a Chief Election Commissioner plus such other Election Commissioners as the President may fix from time to time; Regional Commissioners may also be appointed.
- **Article 324(5)** removes the CEC only **like an SC judge**. Other ECs and Regional Commissioners cannot be removed except on the **CEC's recommendation**.
- The same clause also protects the CEC: his service conditions **cannot be varied to his disadvantage** after appointment.
- **Article 324(6)** requires the President and every Governor to provide staff to the ECI whenever it asks.
- **Article 325** guarantees one general electoral roll; there is **no** special roll based on religion, race, caste, or sex.
- **Article 326** puts Lok Sabha and State Assembly elections on **adult suffrage** — the voting age is **18** after the **61st Amendment**.
- **Articles 327 and 328** let Parliament, and in default a State legislature, make laws on elections.
- **Article 329** bars courts from questioning delimitation or seat-allotment; an election can be challenged **only** through an **election petition**.

Conduct vs dispute (do not mix): ECI **conducts** the President/VP election. **Doubts and disputes** of that election = **SC under Art. 71**, not ECI. Speaker = **House**. PRI/ULB = **SEC**.

Composition history (इतिहास) (matching): From **1950 to 1989**, the ECI was a single-member body. On **16 October 1989**, it briefly became a three-member body. On **1 January 1990**, it reverted to a single member. Since **1 October 1993**, it has been a durable three-member body. Decisions are taken by

majority among the CEC and the ECs, who have an **equal vote**. **Removal**, however, is **not** equal: only the CEC has the SC-judge shield, while an EC can be removed only on the CEC's recommendation.

Appointment (CA): In *Anoop Baranwal* (March **2023**), the Supreme Court held that, until Parliament made a law, the selection panel would be the **PM, the Leader of Opposition, and the CJI**. Parliament then enacted the **CEC and Other Election Commissioners Act, 2023**. Under that Act, a Search Committee headed by the Cabinet Secretary shortlists names for a Selection Committee of the **PM (chair), the Leader of Opposition in the Lok Sabha, and a Union Cabinet Minister**. The **CJI is not on the 2023 panel.** The CEC and other ECs hold office for **6 years or till age 65**, whichever is earlier. Their salary is now aligned with the **Cabinet Secretary's** salary under the 2023 Act, not with an SC judge's salary.

- **First CEC:Sukumar Sen** (1950) — first general election **1951–52**.
- **First woman CEC:V.S. Ramadevi** (**1990**, very short).
- **Famous, not first:T.N. Seshan** (1990–96) — MCC / rolls / photo ID muscle.

Statute pair: The **Representation of the People Act, 1950** deals with electoral rolls, seats, and the delimitation *machinery*. The **Representation of the People Act, 1951** deals with the conduct of elections, nominations, corrupt practices, and election petitions. The **Election Symbols (Reservation and Allotment) Order** governs recognition (मान्यता) of parties and allotment of symbols. **Section 29A of the 1951 Act** governs the registration of political parties.

What ECI actually does (list): - It notifies the election schedule. - It recognises **national and state** parties and allots them **symbols**. - It prepares and revises the **electoral rolls**. - It enforces the Model Code of Conduct (आचरण नियमावली), which is a **convention**, not a statute. - Its advisory opinion on disqualification under **Art. 103 (MPs)** or **Art. 192 (MLAs)** is **binding** on the President or Governor. - It may order a re-poll or countermand a poll where the law allows, and it locates polling stations. - It does **not** run the **Delimitation Commission** — that is a separate statutory body, even though the CEC often *chairs* it. - It does **not** conduct **municipal or Panchayat** polls — that is the State Election Commission's job. - It does **not** conduct the **Speaker's election** or decide **Art. 71** disputes.

> **Logic:** "ECI decides President-election disputes" is **false** → **71**. "ECI = Delimitation Commission" is **false**.

PYQ — UPPCS Prelims 2024, Q24

Which of the following are the functions of the Election Commission of India?

1. Conduct of elections for the posts of the Speaker and the Deputy Speaker of the Lok Sabha and Deputy Chairman of the Rajya Sabha (राज्यसभा).
2. Conduct of elections of the Municipal Corporations and Municipalities.
3. Deciding on all doubts and disputes arising out of the above elections.

A. 2 and 3 B. 1 and 2 C. 1 and 3 D. None of the above

Show answer

Ans: D — None. Speaker = **House**. Municipal = **SEC**. Disputes of those are not ECI's.

PYQ — UPPCS Prelims 2021, Q91

1. Sukumar Sen was the first Chief Election Commissioner of India.
2. Rama Devi was the first woman Chief Election Commissioner of India.

(Options garbled in some dumps; both statements are true.)

Show answer

Both true.V.S. Ramadevi, 1990.

UPSC (Arts. 315–323)

Constitutional recruiting body for the Union (Arts. **315–323**) — advice is **not** binding; expenses **charged**.

Lineage: 1919 Act seed → **Lee Commission 1924** → Central PSC **1926** (first Chair **Sir Ross Barker**) → Federal PSC **1937** → **UPSC 26 Jan 1950**.

- **Article 315** sets up the UPSC for the Union and a PSC for each State; two or more States may share a **Joint PSC (JPSC)** if their legislatures pass a resolution and Parliament so provides by law.
- **Article 316** says the President appoints members for a tenure of **6 years or till age 65**, whichever is earlier.
- The same article requires that, **as nearly as possible, one-half** of the members shall be persons who have held office for **at least 10 years** under the Union or a State.
- **Article 317** removes a member only **like an SC judge**: on a charge of misbehaviour, the President refers the matter to the **Supreme Court**, and removes the member only if the Court so reports after inquiry.
- The President may **suspend** a member while that reference is pending.
- A member may also be removed for insolvency, taking paid employment outside official duties, or infirmity of mind or body.
- **Article 318** lets the President make regulations on the staff and conditions of service of the Commission.
- **Article 319** places a **bar on further employment**, detailed in the table below.
- **Article 320** makes the UPSC conduct examinations for Union services and advise on recruitment methods, promotions, transfers, disciplinary matters, legal-cost reimbursement, and pension claims.
- Under the **proviso to Article 320(3) and Article 320(5)**, the Union **need not** consult the UPSC on every post — the President may make regulations exempting certain posts, such as reserved appointments, temporary posts, or posts under specified commissions.
- **Article 321** lets **Parliament** confer extra functions on the UPSC, and lets the **State Legislature** do the same for an SPSC.
- **Article 322** charges UPSC's expenses on the Consolidated Fund of India (भारत की संचित निधि).
- **Article 323** requires the UPSC to report to the **President**, who lays it before Parliament; the government must explain any **non-acceptance** of its advice.

Advice is not binding. Sources of functions (**2024 = all four**): Constitution · Parliamentary laws · Executive rules/orders · **Conventions**.

Art. 319 — who can take which next job

Ceases to be	May later be	May not
UPSC Chairman	—	**Any** further Union **or** State office
UPSC member	UPSC **Chair** or an **SPSC Chair**	Other Union/State office
SPSC Chairman	UPSC Chair **or** Chair of **another** SPSC	Other Union/State office
SPSC member	UPSC Chair / UPSC member / SPSC Chair (same or another State)	Other Union/State office

> **Logic:** UPSC is **not** SSC, not CAPF (सीएपीएफ) recruitment board, not the employer of all public servants. **AIS** papers are UPSC; day-to-day cadre control is **dual** (Centre + State).

PYQ — UPPCS Prelims 2024, Q124

The UPSC derives its functions from which of the following sources?

1. The Constitution
2. Parliamentary Laws
3. Executive Rules and Orders
4. Conventions

A. 1 and 2 B. 1 and 3 C. Only 1 D. 1, 2, 3 and 4

Show answer

Ans: D — all four.

State PSC & Joint PSC

Constitutional recruiting bodies for States — SPSC per State (Art. **315**); **JPSC** if two or more States + Parliament.

	SPSC	JPSC
Who	Each State (**315**)	**Two or more** States: legislatures **resolve** + **Parliament** by law
Appoint / resign	**Governor**	**President**

	SPSC	JPSC
Remove / 317	**President** — **not** the Governor	**President**
316 half-with-10y	Same rule	Same idea as the law provides
Extra functions	**State Legislature (321)**	As the Act says
Report	**Governor** → State House(s); unexplained rejections to be told	As the Act says
Expenses	Charged on **State** CFI	Shared as the law provides

Three different authorities (UP 2021 trap):appoint = Governor · **remove** = President · **extend functions** = **State Legislature**.

UP:UPPSC, HQ **Prayagraj** (प्रयागराज). ≠ UPSC (Union) ≠ UP **SEC** (local polls).

PYQ — UPPCS Prelims 2021, Q133

The functions of the State Public Service Commission (राज्य लोक सेवा आयोग) of Uttar Pradesh (उत्तर प्रदेश) can be extended by

A. Prime Minister B. Union Ministry of Personnel C. The President D. Uttar Pradesh State Legislature

Show answer

Ans: D — Art. 321. Appoint = Governor; **remove = President**; **extend functions = State Legislature**. Three different authorities — classic trap.

UP: UPPSC is the SPSC; HQ **Prayagraj**. Do not confuse with **UPSC** (Union, Delhi) or **UP SEC** (local bodies).

Finance Commission (Art. 280) — as a body

Constitutional tax-share commission — President constitutes every 5th year; Chair+4; report to the **President**. (Tax-share pipes 268–271 and grants 275 vs 282 are the federal money rules — fact the body here.)

- The Finance Commission is a **constitutional body**; the **President** constitutes one every **five years**, or earlier if needed.
- It has a **Chairman and four other members** — **not six**, a common trap.
- **Parliament** fixes the qualifications for members through the **Finance Commission (Miscellaneous Provisions) Act, 1951**: the Chair should have experience of public affairs, and the four members should have the calibre of an HC judge, or experience in government finance and accounts, or in financial administration, or specialised knowledge of economics.
- The **President** appoints the Commission; fixing qualifications (by Parliament) and making the appointment (by the President) are **two different steps** — a 2021 Assertion–Reason favourite.

- Under **Article 281**, its report goes to the **President**, who lays it before **Parliament** along with an **explanatory memorandum** on the action taken — **not** to NITI Aayog.
- Its recommendations are **advisory**, not binding like a court's order.
- Under the 1951 Act, the Chairperson is eligible for **reappointment**.
- The **first** Finance Commission was chaired by **K.C. Neogy**; the **16th** is chaired by **Arvind Panagariya**.
- The vertical devolution share recommended was **42%** by the **14th** Finance Commission and **41%** by the **15th**.
- The **15th Finance Commission**, chaired by **N.K. Singh**, submitted two reports: an interim report for **2020–21** and a final report for **2021–26**.
- The **16th Finance Commission** was constituted on **31 December 2023** under **Arvind Panagariya**.

Article 280(3) — what the FC shall recommend (सिफारिश):

- The distribution of the **net proceeds** of taxes between the Union and the States, and among the States themselves.
- The principles that should govern **grants-in-aid** to States under Article **275**.
- Measures needed to augment the Consolidated Fund of a State to supplement the resources of its **Panchayats**.
- Measures needed to augment the Consolidated Fund of a State to supplement the resources of its **Municipalities**.
- Any other matter referred to it by the President in the interests of sound finance.

	Union FC	SFC (243I/Y)
Constituted by	**President**	**Governor**
For	Union–State + local top-up	State–PRI/ULB
Article	**280**	**243I / 243Y**

Master Table — 1st to 16th Finance Commissions (वित्त आयोग)

No.	Chairman (अध्यक्ष)	Appointed (वर्ष)	Operational Period (कार्यकाल)	Key Share / Highlights
1st	**K.C. Neogy**	1951	1952–1957	First FC; laid fundamental revenue-sharing rules
2nd	**K. Santhanam**	1956	1957–1962	Post-States Reorganisation realignment
3rd	**A.K. Chanda**	1960	1962–1966	Addressed Planning Commission dualism
4th	**Dr. P.V. Rajamannar**	1964	1966–1969	State autonomy focus
5th	**Mahavir Tyagi**	1968	1969–1974	Interim + final reports

No.	Chairman (अध्यक्ष)	Appointed (वर्ष)	Operational Period (कार्यकाल)	Key Share / Highlights
6th	**K. Brahmananda Reddy**	1972	1974–1979	Upgradation grants for backward states
7th	**J.M. Shelat**	1977	1979–1984	Increased excise sharing to 40%
8th	**Y.B. Chavan**	1982	1984–1989	Addressed revenue deficits
9th	**N.K.P. Salve**	1987	1989–1995	Normative approach to state expenditure
10th	**K.C. Pant**	1992	1995–2000	Recommended Alternative Devolution Scheme (80th Amend.)
11th	**Prof. A.M. Khusro**	1998	2000–2005	First local bodies grants under 73rd/74th Amend.
12th	**Dr. C. Rangarajan**	2002	2005–2010	30.5% devolution; debt consolidation & relief facility (FRBM linked)
13th	**Dr. Vijay Kelkar**	2007	2010–2015	32.0% devolution; GST incentive roadmap; disaster response (NDRF/SDRF)
14th	**Dr. Y.V. Reddy**	2013	2015–2020	**42.0%** devolution (record 10% jump; untied funds to States)
15th	**N.K. Singh**	2017	2020–2021 (Interim) / 2021–2026 (Final)	**41.0%** (1% carved out for UTs of J&K & Ladakh); 2011 Census base
16th	**Dr. Arvind Panagariya**	2023 (31 Dec)	2026–2031	16th Commission; Secretary Ritvik Ranjanam Pandey

Delimitation Commission (परिसीमन आयोग) — Arts. 82, 170 & 329

Statutory boundary-fixing body — Parliament enacts a Delimitation Act after Census; orders have **force of law** and **cannot be questioned in court**.

- **Constitutional Basis:**
- **Article 82:** Allocation of seats and territorial delimitation for **Lok Sabha** after each census by an authority prescribed by law.
- **Article 170:** Delimitation and seat adjustment for **State Legislative Assemblies** (Vidhan Sabhas) after each census.
- **Article 329(a): Complete judicial bar** — validity of any law relating to delimitation or allotment of seats cannot be called in question in any court (*Meghraj Kothari v. Delimitation Commission*, 1967 SC).
- **The 4 Delimitation Acts:** 1. Delimitation Commission Act, **1952** 2. Delimitation Commission Act, **1962** 3. Delimitation Commission Act, **1972** 4. Delimitation Commission Act, **2002** (chaired by **Justice Kuldip Singh**; worked based on 2001 Census).
- **Composition of Delimitation Commission:**

- **Chairperson:** A retired **Supreme Court Judge** appointed by the President of India.
- **Members (Ex-officio):** Chief Election Commissioner (or an Election Commissioner nominated by CEC), and the **State Election Commissioner** of the concerned state.
- **Associate Members:** 5 Lok Sabha MPs and 5 State MLAs from that State (appointed by Speaker of LS and Speaker of Vidhan Sabha); attend hearings but **have NO right to vote** or sign the final order.
- **Seat Freezes (Amendments):**
- **42nd Amendment, 1976:** Froze total seats in Lok Sabha (543) and Assemblies based on **1971 Census** until after the year 2000.
- **84th Amendment, 2001:** Extended the freeze on total seats up to the year **2026** (first census published after 2026); permitted internal boundary readjustment using 1991 Census.
- **87th Amendment, 2003:** Substituted **2001 Census** (in place of 1991) as the base for internal boundary rationalisation without changing total seat count.
- **Key Trap:** The Delimitation Commission is **NOT** the Election Commission of India. ECI merely provides administrative assistance and notifies the resulting orders. ECI cannot alter delimitation boundaries on its own.

CAG (Arts. 148–151)

Constitutional auditor of Union and States (Arts. **148–151**) — appointed by the President; removed like an **SC judge**; **no further office**.

- **Warrant of Precedence:** CAG = **rank 9A** (with CEC and UPSC Chair).
- **Article 148** provides for a CAG appointed by the **President**, holding office for a tenure fixed by law — **6 years or till age 65**.
- The same article removes him only **like an SC judge**, charges his salary on the Consolidated Fund so it cannot be varied to his disadvantage, and bars him from **any further office** under the Union or a State after he demits office.
- **Article 149** gives the CAG duties and powers as **Parliament may by law** prescribe — laid down today in the **CAG's (Duties, Powers and Conditions of Service) Act, 1971**.
- **Article 150** requires the form of Union and State **accounts** to be prescribed by the President **on the advice of the CAG**.
- **Article 151** sends the CAG's Union reports to the **President**, who lays them before Parliament, and his State reports to the **Governor**, who lays them before the State legislature.

Audit trail — CAG → Houses → PAC (लोक लेखा समिति)

- The CAG **audits after spending**. He is not a UK-style Comptroller who blocks issue of money beforehand.
- Union reports go to the **President** and are laid before **both Houses**. State reports go to the **Governor** and are laid before the State legislature.
- The **Public Accounts Committee (PAC)** examines those audit reports on the civil side. The CAG is **not** a PAC member; he attends as a friend / witness.

- **COPU** (Committee on Public Undertakings) uses CAG material on **PSUs**. The **Estimates Committee** works on estimates and has **no** CAG report link.
- Do not invent a "CAG committee." Mark **PAC** when the stem asks who examines the CAG's audit report.

What is audited: The CAG audits the Consolidated Fund, the Contingency Fund (आकस्मिकता निधि), and the Public Account (लोक लेखा) of both the Union **and the States**. He also audits bodies substantially financed from those funds, and government companies and corporations as the 1971 Act provides. The **Accountant General** in a State is simply the CAG's field officer — he is **not** the Advocate General.

Three audits (raata): A **financial audit** checks whether the accounts are true and fair. A **compliance audit** checks whether rules were followed. A **performance (or propriety) audit** checks value for money and waste. For secret-service expenditure, the CAG accepts a **certificate** from the competent authority instead of vouchers.

UK Comptroller	Indian CAG
Can **block** a payment **before** it is made	**Audits after** spend — "Comptroller" in the name is **historical**

Parliament link: reports examined by **PAC** (civil). **COPU** = CAG on **PSUs** only. **Estimates = no CAG**. CAG is **not** a PAC member; attends as a **friend / witness**. First CAG of independent India: **V. Narahari Rao**.

PYQ — UPPCS Prelims 2022, Q55

The audit report of the Comptroller and Auditor General (नियंत्रक-महालेखापरीक्षक) of India is examined by—

A. Public Accounts Committee B. Public Undertakings Committee C. Estimates Committee D. None of the above

Show answer

Ans: A — PAC. COPU = PSU slice only. Estimates has **no** CAG link.

Attorney General (Art. 76) & Advocate General (Art. 165)

Constitutional law officers — AG (Art. **76**) for the Union; AdvG (Art. **165**) for the State. Pleasure of President / Governor; SG has **no Article**.

	Attorney General (76)	Advocate General (165)
Qualify	**SC judge** (citizen, 5y HC / 10y advocate / distinguished jurist)	**HC judge**
Appoint	**President**	**Governor**
Tenure / removal	**Pleasure** — **no** impeachment, **no** fixed age in the text (2023)	Pleasure of the Governor
Duties	Legal advice to GoI; appear in SC/HC for Union; any court; other duties the President assigns	Same vis-à-vis the State

	Attorney General (76)	Advocate General (165)
Houses	**Art. 88** — speak in **both** Houses and committees; **no vote**; privileges of a member **while so performing**	**Art. 177** — same in the State House(s)
Practice	**Not** a government servant. Private briefs **OK** except **against GoI** / in cases he advises on	Analogous
Salary	Fixed by President; **not charged** on CFI	State arrangement; not Union-charged
Part	**V — not XIII**	**VI**
First	**M.C. Setalvad**	—

Law-officer ladder (only the top rung is constitutional): The **Attorney General** under **Article 76** sits at the top. Below him come the **Solicitor General** and the **Additional Solicitors General**. Both the SG and the Additional SGs are **executive** appointments — neither is mentioned in Article 76.

> **Logic:** AG can be **asked to leave** a secret sitting (बैठक); he is **not** a minister and **not** a member unless separately elected (then the usual office-of-profit issues). Consent of the AG is used in some **contempt** proceedings — don't make him a judge.

PYQ — UPPCS Prelims 2023, Q12

With reference to the Attorney General of India, which of the following statement(s) is/are correct?

1. A person is appointed as Attorney General who is qualified to be appointed as a Judge of the Supreme Court.
2. The Attorney General can be removed through the same process as the Judges of the Supreme Court.

A. Only 1 B. Only 2 C. Both 1 and 2 D. Neither 1 nor 2

Show answer

Ans: A — Only 1. Pleasure of the **President**.

PYQ — UPPCS Prelims 2020, Q110

Which one of the following is NOT correctly matched?

A. Fundamental Duties (मौलिक कर्तव्य) — Part IVA B. The States — Part VI C. Attorney General of India — Part XIII D. Services under the Union and States — Part XIV

Show answer

Ans: C. AG = **Part V**. Part XIII = **trade (पण्याध्यक्ष), commerce, intercourse**.

GST Council (Art. 279A) — as a body

Constitutional federal tax council (Art. **279A**, 101st) — Union FM chairs; Centre **1/3** + States **2/3**; 3/4 weighted majority; quorum 1/2.

- The **101st Amendment (2016)** inserted Article 279A; GST itself was levied from **1 July 2017**.
- The **President** constitutes the GST Council.
- The **Union Finance Minister** chairs it.
- Its members are the Union **Minister of State for Finance** and the Finance Ministers of every State (and of Union Territories **with a legislature**); the Vice-Chair is elected from among the **State** members.
- On voting weight, the **Centre** has **one-third** of the votes and **all States together** have **two-thirds**; a decision needs **at least three-fourths** of the weighted votes of members **present and voting**, with a quorum of **half** the total membership (सदन की कुल सदस्य संख्या का).
- Under **Article 279A(4)**, the Council recommends which taxes and cesses go into GST, exemptions, model GST laws, special provisions for the **north-eastern and hill States**, the threshold for exemption, GST rates (a floor with bands), and the date from which petroleum products may be brought under GST.
- In *Mohit Minerals* (**2022**), the Supreme Court held that the Council's recommendations are **not** binding legislation — Parliament and State legislatures retain their own law-making power.
- The GST Council is a **different body** from the Inter-State Council (**Art. 263**, chaired by the PM), the Finance Commission (**Art. 280**), and NITI Aayog (an executive body).

Special Officer for Linguistic Minorities (Art. 350B)

One Union officer for linguistic-minority safeguards — 7th Amendment (1956) (States Reorganisation), **not** the 9th; **not** one officer per State.

- **350:** Any person may **submit a representation** for redress of a grievance to any Union or State authority in **any language used in the Union or in the State**.
- **350A:** States / local authorities to endeavour **mother-tongue** instruction at **primary** stage for linguistic-minority children; President **may direct**.
- **350B:One** Special Officer **for India** (not per State), appointed by the **President**. Investigate **safeguards** for linguistic minorities; report to the President → Parliament + States.

Operational title: **Commissioner for Linguistic Minorities** (first appointed **1957**). Original HQ **Allahabad** (इलाहाबाद). Now under the Minority Affairs administrative set-up — don't freeze a pin-code.

> **Logic:** 8th Schedule (अष्टम अनुसूची) = **22 recognised languages**. 350B is the **officer**, not the Schedule. 9th Amd = **1960** (territory / Berubari line) — **not** 350B.

PYQ — UPPCS Prelims 2024, Q142

Consider the following statements with reference to Special Officer for Linguistic Minorities:

1. In the Constitution, there is a provision for the post of Special Officer for Linguistic Minorities for every State.
2. A new Article 350B was added for this by the 9th Constitution Amendment Act.

A. Only 2 B. Neither 1 nor 2 C. Only 1 D. Both 1 and 2

Show answer

Ans: B — Neither.One Union officer, **7th** Amendment.

NCSC (Art. 338)

Standing constitutional commission for Scheduled Castes — Art. **338** + list **341**. Split from STs by the **89th** (in force **19 Feb 2004**).

- **Original 338:** A **Special Officer** for SCs **and** STs (one person).
- **65th Amd (1990):** Multi-member **National Commission for SCs and STs**.
- **89th Amd (2003)** in force **19 Feb 2004:** Split — **NCSC = 338 · NCST = 338A**.
- **Appoint:President** (warrant). Chairperson + Vice-Chairperson + **three** members (strength by law / practice; conditions fixed by President).
- **Rank convention:** Chair ~ **Cabinet Minister**; Vice ~ **MoS** — convention, not in 338's text. **Article 338(5) — functions of the NCSC:**
- It investigates and monitors all matters relating to the **safeguards** provided for SCs.
- It inquires into **specific complaints** of deprivation of the rights of SCs.
- It advises on the planning of the socio-economic development of SCs, and participates in that planning.
- It presents reports to the President.
- It performs any other function the President specifies in relation to SCs.
- **338(8):** While investigating, the NCSC has all the powers of a **civil court** — it can summon (आहूत करना) witnesses, order discovery, receive affidavits, requisition public records, and issue commissions ination of witnesses.
- **338(9):** The Union and every State **shall consult** the NCSC on all **major policy** matters affecting SCs.
- The NCSC reports to the **President** annually, or as needed; the report is laid before **Parliament** with a memorandum on action taken, and reasons for any non-acceptance. Copies on State matters go through the **Governor** to the State House.
- By specification and practice, the NCSC also watches over **Anglo-Indian** safeguards — there is **no** separate constitutional Anglo-Indian Commission.
- Under **Article 341**, the President notifies the list of **SCs**, after consulting the Governor; **only Parliament** can amend that list thereafter.
- The NCSC is **not** a court of appeal, is **not** the same as the **NHRC** (which is statutory), and does **not** replace a High Court.

NCST (Art. 338A)

Standing constitutional commission for Scheduled Tribes — Art. **338A** + list **342**, after the **89th** (in force **19 Feb 2004**). Do **not** write "338 for STs" in a post-2004 question.

- **Appoint:** The **President** appoints the Chairperson, Vice-Chairperson, and members, and fixes their conditions of service; the rank convention (Chair ~ Cabinet Minister, Vice ~ MoS) is the same as for the NCSC.
- Under **Article 338A(5)**, the NCST investigates and monitors **ST safeguards**, inquires into specific **complaints**, advises on ST socio-economic development and planning, presents reports, and performs other functions the President specifies.
- **Article 338A(8)** gives it the same civil-court toolkit as the NCSC.
- **338A(9)** requires the Union and every State to **consult** the NCST on **all major policy** affecting STs — this covers matters like displacement, mining, Forest Rights, and the Fifth/Sixth Schedule (6वीं अनुसूची), a favourite examiner's bait.
- The NCST's reports go to the **President**, who lays them before Parliament with an action memo; the slice on State matters goes through the **Governor**.
- Under **Article 342**, the President notifies the list of **STs**; **only Parliament** can amend that list.
- The NCST sits under the Ministry of **Tribal (आदिवासी) Affairs**, while the NCSC sits under the Ministry of **Social Justice** — the ministry that administers a body is not the same as the article that creates it.

Art. 339 ≠ NCST (do not merge)

Ad hoc Scheduled Areas / ST-welfare inquiry — not the standing NCST.

- **339(1):** President **may appoint a commission** to report on the **administration of Scheduled Areas** and the **welfare of STs** in the States. First such report was due **10 years** from commencement (a **340-style ad hoc** inquiry, not the standing NCST).
- **339(2):** Union may give **directions** to a State on ST welfare schemes.

> **Logic:** Match: SC → **338** + list **341** · ST → **338A** + list **342** · OBC → **338B** + list **342A**. "One commission still covers SC+ST" is **pre-2004**.

NCBC (Art. 338B) and Art. 340

Standing OBC commission (338B) is not the ad hoc 340 inquiry — 2024 exploited this pair.

	Art. 340	Art. 338B (NCBC)
What	President **may appoint a commission** to **investigate** the conditions of socially and educationally backward classes and recommend safeguards	**Standing** National Commission for Backward Classes
Nature	**Ad hoc** investigating body	**Constitutional** (continuous)

	Art. 340	Art. 338B (NCBC)
History	**Kaka Kalelkar** (1953) · **B.P. Mandal** (1979)	Statutory **NCBC Act 1993** → **102nd Amd 2018** inserted **338B** + **342A**
2024 PYQ	Among four options, "NCBC — 340" was the **least-wrong match** (165/148/263 were howlers). **Still teach 338B** as the standing body	

102nd (2018): 338B (NCBC) + **342A** — President specifies SEBCs for a State (consultation with Governor); **Parliament** may amend that **Central** list.

105th (2021): after *Janhit Abhiyan* / Maratha (मराठा) fallout — restored **States' power** to identify/list OBCs for **their own** purposes. **Central list still 342A**; States keep a **State list** (राज्य सूची). 338B stays.

Why a standing NCBC at all: *Indra Sawhney* (**1992**) said identification of OBCs should be done by a **permanent body** → Parliament enacted the **NCBC Act, 1993**. That body was **statutory** until the **102nd** put it in the Constitution.

Standing NCBC (338B) facts:

- The **President** appoints the Chairperson, Vice-Chairperson, and members; the NCBC has civil-court powers and reports in the same manner as the NCSC under Article 338.
- The Union and every State **shall consult** the NCBC on major OBC policy.
- Under **Article 342A**, the President specifies **SEBCs** for a State after consulting the Governor, and **Parliament** amends that **Central** list.
- The **105th Amendment (2021)** let States once again maintain their **own OBC list** for State services and education, so there are now two lists: the **Central list (342A)** and each State's own list.
- In *Janhit Abhiyan* (2021), the Supreme Court had read the 102nd Amendment as stripping States of this power; the **105th Amendment** is the political and constitutional fix for that reading (रीडिंग).

> **Logic:** Mandal ≠ NCBC. Mandal = **340** (ad hoc inquiry, 27% OBC + creamy layer via *Indra Sawhney*). Standing NCBC = **338B** (1993 statutory → **102nd / 2018** constitutional). 340 did **not** vanish.

Three commissions at a glance

	NCSC	NCST (राष्ट्रीय अनुसूचित जनजाति आयोग)	NCBC (राष्ट्रीय पिछड़ा वर्ग आयोग)
Article	**338**	**338A**	**338B**
List article	**341**	**342**	**342A** (+ State list after 105th)
Since	65th (combined) → 89th split	**89th / 2004**	1993 Act → **102nd / 2018**
Civil court / consult / report to President	Yes	Yes	Yes

Official Language Commission (Art. 344) & Part XVII

Part XVII = Arts. 343–351. Official language of the **Union** = **Hindi in Devanagari** script (लिपि); numerals = **international form of Indian numerals** (343(1)). **344** is a **time-bound** Commission, not the 1976 Parliamentary Committee.

- **Article 343(2)** let English **continue** for Union official purposes for **15 years** from commencement — a clock that, on the text, ran out on **26 January 1965**.
- **Article 343(3)** lets Parliament provide for English (or Hindi) even after those 15 years — this is the hook for the 1963 Act.
- **Article 344** requires the President to constitute an Official Language Commission at the end of **5 years**, and again at the end of **10 years**, from commencement — that is, in **1955** and **1960**. Its members represent languages listed in the **Eighth Schedule** (आठवीं अनुसूची).
- That Commission examines the progressive use of Hindi, restrictions on the use of English, the form of numerals, and any other matter the President refers to it; it reports to the President, who lays it before Parliament.
- A Parliamentary Committee of **30 MPs — 20 from the Lok Sabha and 10 from the Rajya Sabha** — examines that report.
- The **first** Commission was chaired by **B.G. Kher** in 1955, and reported in **1956**.
- **Article 345** lets a State legislature adopt one or more languages, or Hindi, as the official language of the State.
- **Article 346** governs the language used for communication between States and between a State and the Union.
- **Article 347** lets the President recognise a language spoken by a section of a State's population (जनसंख्या) as official **within that State**.
- **Article 348** keeps proceedings of the Supreme Court, High Courts, Bills, Acts, and ordinances in **English**, until Parliament provides otherwise; a Governor may, with the President's consent, authorise Hindi or another State language in that **High Court**.
- **Article 349** requires the President's prior sanction, after considering the **344** report, for certain language Bills during the first **15 years**.
- **Article 351** places a **duty** on the Union to **promote the spread of Hindi**, so that it may serve as a medium of expression for India's composite culture, drawing on Hindustani (हिंदुस्तानी) and the Eighth Schedule languages.

Statute vs later committee (do not merge): The **Official Languages Act, 1963**, amended in **1967** after the anti-Hindi agitation, lets English **continue indefinitely** alongside Hindi for Union purposes. The **Committee of Parliament on Official Language (1976)** was created under that Act and is chaired by the **Union Home Minister** — it is **not** the same as the Article 344 Commission (अनु. 344 आयोग).

Not this body: The **Eighth Schedule** is simply a **list of 22 languages**. The **"classical language (शास्त्रीय भाषा)"** tag is granted by an executive decision. The **three-language formula** is an education policy, not a constitutional provision. **Article 350B** is the linguistic-minorities **officer**, a separate office altogether.

PYQ — UPPCS Prelims 2023, Q8

The Constitution of India initially permitted the use of English language for all official purposes for a period of—

A. 5 years B. 10 years C. 15 years D. 20 years

Show answer

Ans: C — 15 years (343(2)). The 1963/67 Act is why English is still there.

PYQ — UPPCS Prelims 2023, Q1

Which among the following (Provision — Part) is **not** correctly matched?

A. Union Territories — Part VIII B. Scheduled and Tribal Areas — Part X C. Tribunals — Part XI D. Official Language — Part XVII

Show answer

Ans: C. Tribunals = **Part XIVA** (भाग XIVA). Official Language = **XVII** is correct.

Article-wise constitutional bodies (one raata)

- **76** — Attorney General
- **148** — CAG
- **165** — Advocate General
- **243I / 243Y** — State Finance Commission
- **243K / 243ZA** — State Election Commission
- **263** — Inter-State Council (*may*)
- **279A** — GST Council
- **280** — Finance Commission
- **315** — UPSC / SPSC / JPSC
- **324** — Election Commission
- **338** — NCSC
- **338A** — NCST
- **338B** — NCBC
- **339(1)** — Ad hoc commission on **Scheduled Areas / ST welfare** (not NCST)
- **340** — Ad hoc BC **investigating** commission (not the standing NCBC)
- **341 / 342 / 342A** — Lists of SC / ST / Central SEBC
- **344** — Official Language Commission (time-bound)
- **350B** — Special Officer, Linguistic Minorities

Constitutional vs Statutory vs Executive

Kind	Test	examples
Constitutional	Created **by the Constitution**	ECI, UPSC/SPSC, FC, CAG, AG/AdvG, GST Council, NCSC/NCST/NCBC, 350B officer (भाषाई अल्पसंख्यक अधिकारी), ISC, SFC, SEC
Statutory	Created by an **Act of Parliament / State**	**Lokpal** (लोकपाल) (2013) · **NHRC / SHRC** (1993) · **CVC** (2003 Act; was executive) · **CIC / SIC** (RTI 2005 (आरटीआई 2005)) · **NCW** (1990) · **NCM** (असहयोग) (1992) · **NCPCR** · **NCSK** (Safai Karamcharis) · **NGT** · **CAT** (1985) · **Delimitation Commission** · old **NCBC 1993**
Executive / extra-constitutional	Created by **resolution / order**	**NITI Aayog (1 Jan 2015)** · Planning Commission (योजना आयोग) · **NDC** · **Law Commission of India**

Look-alike trap: "National Commission for …" is **not** automatically constitutional. **NCSC / NCST / NCBC** are. **NCW / NCM / NCPCR / NCSK** are **statutory**.

Enabled by Constitution, born by statute: CAT / SAT ride on **Part XIVA (323A/B)** but the tribunals themselves are **statutory**. Delimitation Commission is an **Act**; ECI members may sit on it — still **not** the ECI.

Upgrade path: The CVC started as an **executive** body and became **statutory** only in 2003. The NCBC started as a **statutory** body in 1993 and became **constitutional** in 2018. The Planning Commission, an executive body, was simply replaced by **NITI Aayog**, which remains executive.

> **Logic:** NITI is **not** constitutional and **not** the FC (2018 / 2019 SDG). NHRC looks "national commission" but is **statutory**. NCSC is **constitutional**.

PYQ — UPPCS Prelims 2024, Q125

Which one of the following is correctly matched?

A. Election Commission — Article 165 B. National Commission for Scheduled Castes — Article 148 C. Finance Commission — Article 263 D. National Commission for Backward Classes — Article 340

Show answer

Ans: D as the only non-howler in that paper (165 = AdvG, 148 = CAG, 263 = ISC). **Standing NCBC = 338B**; **340** = investigating commission. Learn **both**.

UP Special — constitutional offices

- **UPPSC** is the State PSC for Uttar Pradesh, headquartered at **Prayagraj**; the Governor appoints its members, the **President** removes them, and the **UP Legislature** can extend its functions.
- **UP SEC** conducts local-body polls only — it is **not** the ECI.

- **UP SFC** is constituted by the Governor under Articles **243I/243Y**.
- The **Advocate General of UP** is appointed under **Article 165**, must be qualified to be a High Court judge, and holds office at the pleasure of the Governor.
- The **official language of UP** is **Hindi**, fixed under the State list power of Article **345**; the Union's official-language machinery under Articles **343–344** is a separate track.

Independence snapshot

- The **CEC** is appointed by the President under the 2023 panel, removed only **like an SC judge**, and has a salary that is charged and protected from disadvantage.
- An **EC** is appointed the same way, but can be removed only on the **CEC's recommendation**; his salary is also charged.
- The **UPSC Chairman** is appointed by the President, removed like an **SC judge**, and his expenses are charged under Article 322.
- The **SPSC Chairman** is appointed by the **Governor**, removed by the **President**, and charged on the State's Consolidated Fund.
- The **CAG** is appointed by the President, removed like an **SC judge**, and his salary is charged.
- The **Attorney General** is appointed by the President and holds office at his **pleasure**; his salary is **not** charged on the Consolidated Fund.
- The **Finance Commission** (वित्त आयोग) is a term body appointed by the President — it is not a standing "judge-like" office.
- The **GST Council** (जीएसटी परिषद) is constituted by the President as a political, deliberative body.
- The **350B Officer** is appointed by the President and holds office at his pleasure, or as otherwise determined.
- **NCSC, NCST, and NCBC** members are appointed by the President, with conditions of service fixed by the President — not through an SC-judge-style impeachment process.

Mains link (one frame)

Constitutional bodies = **text + removal + money**. Contrast ECI/CAG/UPSC (SC-judge shield) with AG (pleasure) and with **statutory look-alikes** (NHRC, NCW). Close on **338 / 338A / 338B** plus the **2023 CEC Act**: independence tracks the **appointment panel**, not the label “commission”.